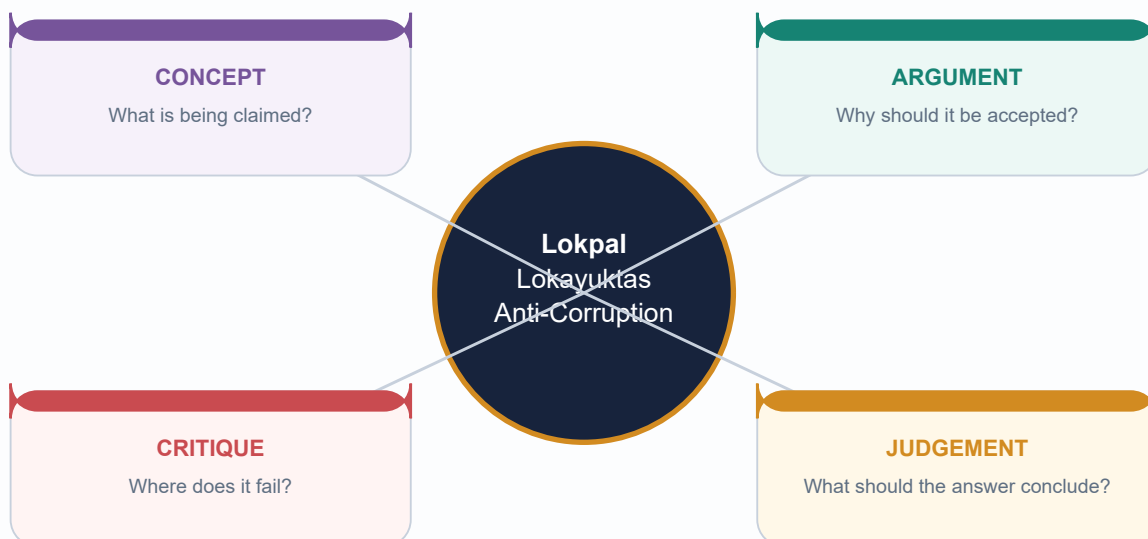


UPSC GS-II POLITY

Lokpal and Lokayuktas: The Anti-Corruption Ombudsman

Integrated Basic + Advanced Course

10 deep-learning modules | Ombudsman Origins to the 2025 Jurisdiction Question
Composition, selection, jurisdiction, powers, drawbacks, Lokayukta federalism and Mains frameworks
Prepared from the verified Polity knowledge base and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Ombudsman Idea to a Statutory Law

GS-II Polity -
Anti-Corruption
Institutions

NEWS TRIGGER

Recurring debates on institutional accountability for high public office keep the twelve-year passage of India's anti-corruption ombudsman law relevant to current governance discourse.

INTRO & ORIGIN

The ombudsman concept originated in Sweden in 1809 as an independent check on executive excess. India's First Administrative Reforms Commission (1966-70) recommended a two-tier ombudsman: a Lokpal at the Centre and Lokayuktas in the states, deliberately keeping the judiciary outside its purview, following the New Zealand model rather than Sweden's.

Ten separate bills were introduced in Parliament between 1968 and December 2011 without becoming law; sustained public mobilisation during the 2011 Anna Hazare / India Against Corruption movement supplied the final push toward enactment.

TIMELINE

1809 — Ombudsman institution first created in Sweden.

1966-70 — First ARC recommends the Lokpal (Centre) and Lokayukta (states) model.

1968-2011 — Ten Lokpal bills introduced in Parliament; none enacted.

2011 — Anna Hazare-led India Against Corruption movement intensifies pressure.

2013 — Lokpal and Lokayuktas Act passed - a statutory, not constitutional, body.

KEY DATA

Milestone	Year	Significance
Ombudsman created	1809	Sweden - origin of the institution
First ARC recommendation	1966-70	Two-tier Lokpal-Lokayukta model proposed
Failed bills	1968-2011	Ten bills; no enactment for over four decades
Anna Hazare movement	2011	Catalyst that built political consensus
Lokpal and Lokayuktas Act	2013	Final statutory enactment

WHY THE 2013 ACT TOOK OVER FOUR DECADES



STATIC THEORY

- The ombudsman is designed as an independent institution for investigating maladministration and corruption, not as a substitute for the regular judiciary.
- The First ARC deliberately excluded the judiciary from the Lokpal's purview, following the New Zealand model rather than the Swedish one, where courts can fall within ombudsman oversight.
- A statutory origin means the Lokpal's existence, structure and powers can be altered by an ordinary Act of Parliament, unlike a constitutional body such as the Election Commission.
- The four-decade delay illustrates how anti-corruption reform in India has historically required an external political trigger rather than routine legislative initiative.

MEMORY HOOK

SWEDEN (1809) gave the idea; ARC (1966-70) gave the design; ANNA HAZARE (2011) gave the push; 2013 gave the law.

MUST-KNOW FACTS

1. The ombudsman concept originated in Sweden in 1809.
2. The First Administrative Reforms Commission (1966-70) recommended the Lokpal-Lokayukta model.
3. Ten bills were introduced in Parliament between 1968 and 2011 before enactment.
4. The Lokpal and Lokayuktas Act was passed in 2013.

UPSC TRAPS

WRONG: The Lokpal is a constitutional body created by a constitutional amendment.

CORRECT: It is a statutory body created by the Lokpal and Lokayuktas Act, 2013.

WRONG: The ombudsman idea originated in the United Kingdom.

CORRECT: It originated in Sweden in 1809.

WRONG: The First ARC recommended bringing the judiciary within the Lokpal's purview.

CORRECT: The First ARC kept the judiciary outside the Lokpal's purview.

MAINS ANGLE

Use the four-decade legislative delay to argue that anti-corruption institution-building in India has been reactive - driven by mass mobilisation rather than proactive parliamentary consensus.

STUDY LINK

Polity -> Anti-Corruption Institutions -> CVC and CBI (companion institutions)

HIGH

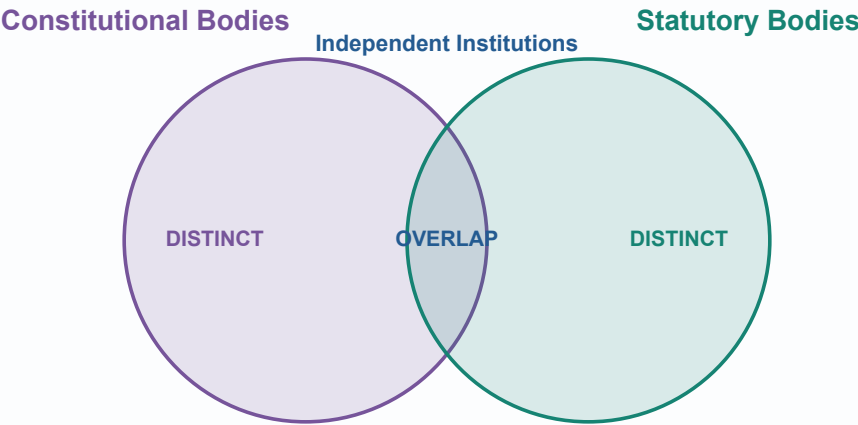
2. Constitutional vs Statutory: Where the Lokpal Stands

GS-II Polity -
Constitutional vs
Statutory Bodies

NEWS TRIGGER

Confusion between constitutional and statutory bodies is one of the most frequently tested institutional distinctions, and the Lokpal is a standard example of the statutory category.

CONSTITUTIONAL BODIES VS STATUTORY BODIES



Constitutional Bodies

- Election Commission
- UPSC
- CAG
- Finance Commission

Independent Institutions

- Check on executive accountability
- Function outside routine ministerial control
- Subject to judicial review

Statutory Bodies

- Lokpal (2013 Act)
- Central Vigilance Commission
- CBI (Delhi Special Police Establishment Act, 1946)
- National Human Rights Commission

The Lokpal's statutory foundation means Parliament can amend or restructure it without a constitutional amendment.

KEY DATA

Feature	Constitutional Body	Statutory Body (Lokpal)
Source	Provision within the Constitution	Ordinary Act of Parliament (2013)
Amendment route	Constitutional amendment procedure	Simple parliamentary amendment
Example	Election Commission, UPSC, CAG	Lokpal, CVC, CBI
Structural protection	Generally higher constitutional insulation	Protection only as provided within the parent Act

STATIC THEORY

- A constitutional body derives its existence directly from a provision of the Constitution and can be altered only through the constitutional amendment procedure under Article 368.
- A statutory body derives its existence from an ordinary law passed by Parliament or a State Legislature, and can be modified by a simple legislative amendment.
- The Lokpal and Lokayuktas Act, 2013 is an ordinary parliamentary statute; the Lokpal therefore has no independent constitutional entrenchment of its own.

MEMORY HOOK

Constitution creates constitutional bodies; Parliament creates statutory bodies - the Lokpal is Parliament's creation, so Parliament can also reshape it.

MUST-KNOW FACTS

1. The Lokpal is a statutory, not a constitutional, body.
2. Statutory bodies can be amended by an ordinary Act of Parliament.
3. The Election Commission, UPSC and CAG are constitutional bodies, unlike the Lokpal.

UPSC TRAPS

WRONG: The Lokpal enjoys the same constitutional insulation as the Election Commission.

CORRECT: It enjoys only the statutory protection given by the 2013 Act.

MAINS ANGLE

Examine whether anti-corruption bodies like the Lokpal should be given constitutional status to insulate them from ordinary legislative change.

STUDY LINK

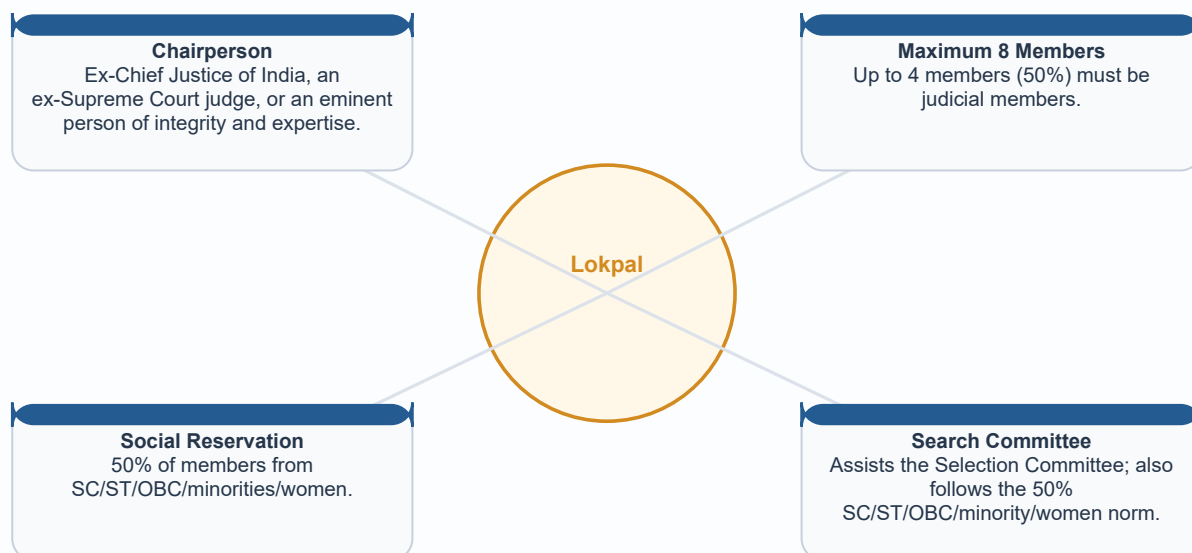
Polity -> Constitutional, Statutory and Quasi-Judicial Bodies -> classification framework

HIGH**3. Composition of the Lokpal**

GS-II Polity -
Institutional
Design

NEWS TRIGGER

Questions on who may head an anti-corruption ombudsman and how judicial versus non-judicial representation is balanced recur whenever a new Chairperson assumes office.

LOKPAL COMPOSITION**KEY DATA**

Position	Eligibility / Rule
Chairperson	Ex-Chief Justice of India / ex-Supreme Court judge / eminent person of integrity and expertise in anti-corruption, public administration, law or finance
Members	Maximum 8; at least 50% (up to 4) must be judicial members
Reservation	50% of members from SC/ST/OBC/minorities/women

STATIC THEORY

- The judicial-member requirement is meant to embed legal rigour in a body that can recommend prosecution and exercise quasi-judicial powers over corruption cases.
- The 50% social-category reservation among members is a distinctive representational feature not commonly found in comparable bodies such as the CVC.

MEMORY HOOK

1 Chair + 8 Members = 9 maximum; half must be judicial, half from reserved categories.

MUST-KNOW FACTS

1. The Lokpal has a Chairperson and a maximum of 8 members.
2. At least 50% of members must be judicial members.
3. 50% of members must come from SC/ST/OBC/minority/women categories.

UPSC TRAPS

WRONG: The Lokpal can have an unlimited number of members.

CORRECT: It is capped at a Chairperson plus a maximum of 8 members.

MAINS ANGLE

Discuss whether the judicial-member requirement strengthens or over-judicialises an anti-corruption investigative body.

STUDY LINK

Polity -> Composition of Independent Bodies
-> comparison with CVC and NHRC

HIGH**4. Selection Process**

GS-II Polity -
Appointment
Procedures

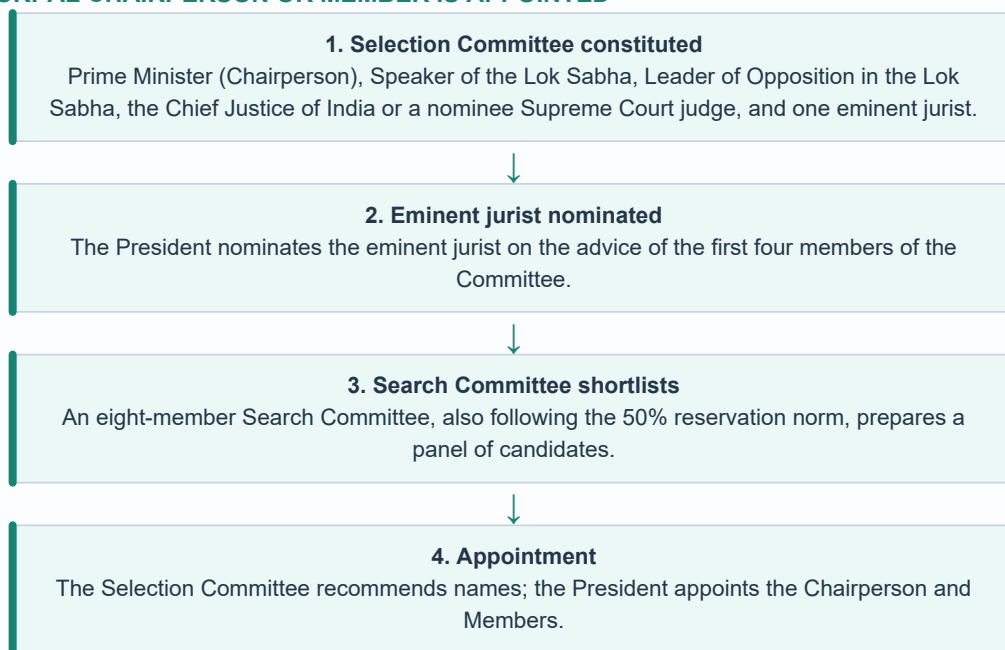
NEWS TRIGGER

The composition of the Selection Committee - dominated by the executive and legislative leadership - is central to debates on the Lokpal's independence.

KEY DATA

Selection Committee Member	Role
Prime Minister	Chairperson of the Selection Committee
Speaker, Lok Sabha	Member
Leader of Opposition, Lok Sabha	Member
Chief Justice of India / nominee SC judge	Member
Eminent jurist	Member, nominated by the President on the other four members' advice

HOW A LOKPAL CHAIRPERSON OR MEMBER IS APPOINTED



STATIC THEORY

- The Search Committee is an intermediate body that shortlists candidates before the Selection Committee makes its final recommendation, adding a layer of vetting to the process.
- Executive presence (the Prime Minister chairing the Committee) alongside legislative and judicial representation is intended to balance political and judicial legitimacy in the appointment.

MEMORY HOOK

PM + Speaker + LoP + CJI/judge + Jurist = the 5-member Selection Committee.

MUST-KNOW FACTS

1. The Prime Minister chairs the Selection Committee.
2. The eminent jurist is nominated by the President on the advice of the other four members.
3. A Search Committee assists the Selection Committee and follows the same 50% reservation norm.

UPSC TRAPS

WRONG: The Chief Justice of India must personally sit on the Selection Committee.

CORRECT: The CJI or a nominee Supreme Court judge may serve on the Committee.

MAINS ANGLE

Evaluate the risk of executive dominance in a Selection Committee chaired by the Prime Minister, and how judicial representation offsets it.

STUDY LINK

Polity -> Appointment Mechanisms -> comparison with CBI Director selection panel

HIGH

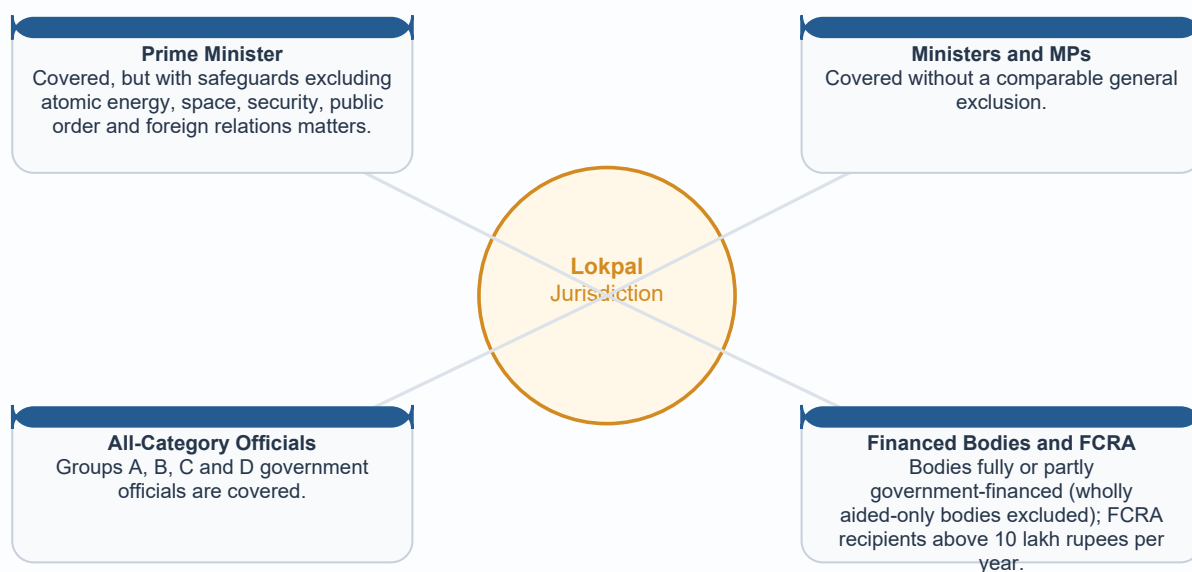
5. Jurisdiction and Coverage

GS-II Polity -
Institutional
Jurisdiction

NEWS TRIGGER

Whether and how far the Prime Minister's office falls under the Lokpal's scrutiny remains one of the most closely watched design features of the anti-corruption framework.

WHO THE LOKPAL CAN INVESTIGATE



KEY DATA

Category	Coverage	Key Condition
Prime Minister	Covered	Excludes atomic energy, space, security, public order, foreign relations matters
Ministers and MPs	Covered	No comparable general exclusion
Government officials	Groups A, B, C and D	All categories covered
Government-financed bodies	Fully or partly financed bodies	Wholly aided-only bodies excluded
FCRA recipients	Foreign-contribution recipients	Threshold: more than 10 lakh rupees per year

STATIC THEORY

- Including the Prime Minister within the Lokpal's jurisdiction, subject to safeguards, was one of the most contested design choices during the passage of the 2013 Act.
- The financing and FCRA thresholds extend jurisdiction beyond government departments into certain NGOs and financed entities, widening the anti-corruption net.

MEMORY HOOK

PM is IN but SAFEGUARDED; aided-ONLY bodies are OUT; the FCRA threshold is above 10 lakh rupees a year.

MUST-KNOW FACTS

1. The Prime Minister is within Lokpal jurisdiction, subject to specified safeguards.
2. Groups A, B, C and D government officials are all covered.
3. Wholly aided (non-financed beyond aid) bodies are excluded from jurisdiction.

UPSC TRAPS

WRONG: The Prime Minister is entirely outside the Lokpal's jurisdiction.

CORRECT: The Prime Minister is included, subject to specific subject-matter safeguards.

MAINS ANGLE

Discuss the rationale for including the Prime Minister within anti-corruption scrutiny while protecting sensitive domains such as national security and foreign relations.

STUDY LINK

Polity -> Executive Accountability -> Prime Minister's Office and oversight bodies

HIGH**6. Powers, Timelines and Procedure**

GS-II Polity -
Investigative
Procedure

NEWS TRIGGER

Delays in corruption trials make the Lokpal's statutory timelines and its superintendence over investigating agencies a recurring policy talking point.

KEY DATA

Stage	Standard Period	Possible Extension
Preliminary enquiry	3 months	+3 months
Investigation	6 months	+6 months
Trial (Special Courts)	1 year	+1 year

THE LOKPAL'S ESCALATING PROCEDURAL CLOCK**STATIC THEORY**

- The Lokpal exercises superintendence and direction over any investigating agency, including the CBI, for cases referred to it.
- It can order the attachment or confiscation of corruptly-acquired property and grants sanction for prosecution in cases within its jurisdiction.
- The Prevention of Corruption Act's maximum punishment was enhanced from 7 to 10 years as part of the same reform package.

MEMORY HOOK

3+3 months enquiry, 6+6 months investigation, 1+1 year trial - the Lokpal's escalating clock.

MUST-KNOW FACTS

1. The Lokpal has superintendence and direction over the CBI for cases referred to it.
2. Preliminary enquiry, investigation and trial each have a base period plus a possible equal extension.
3. Maximum punishment under the Prevention of Corruption Act rose from 7 to 10 years.

UPSC TRAPS

WRONG: The Lokpal has no authority over the CBI's investigations.

CORRECT: It has superintendence and direction over the CBI for cases referred to it.

MAINS ANGLE

Assess whether statutory timelines are sufficient to curb the delays that have historically weakened corruption prosecutions in India.

STUDY LINK

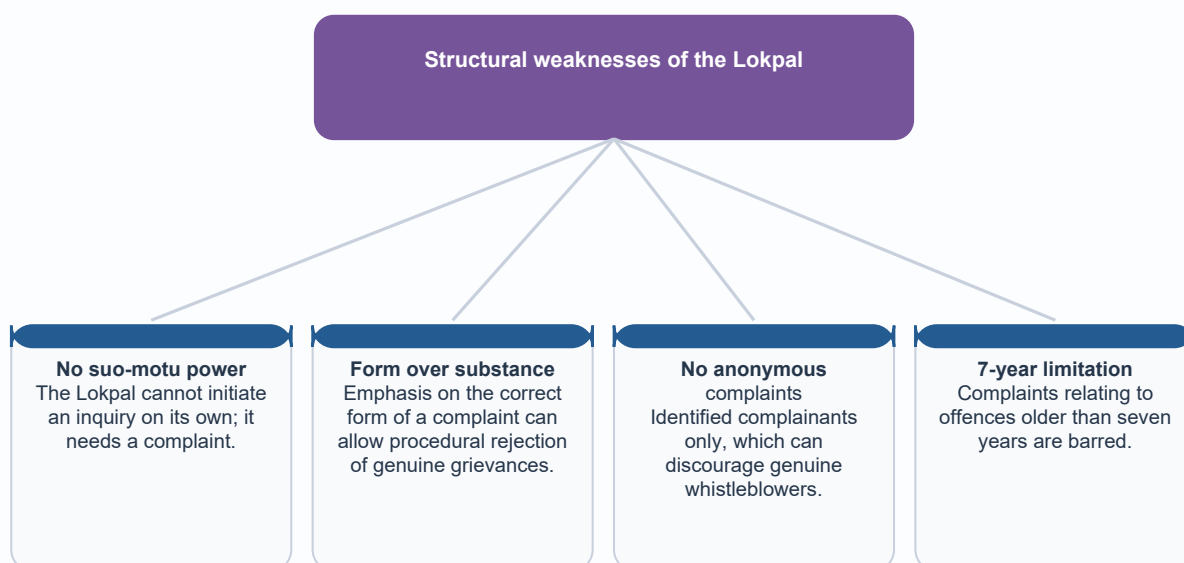
Polity -> CBI Autonomy -> superintendence and referred-case coordination

HIGH**7. Structural Drawbacks**

GS-II Polity -
Institutional
Limitations

NEWS TRIGGER

Civil society critiques of the Lokpal's effectiveness consistently return to the same set of structural gaps identified since the 2013 Act was passed.

AN OMBUDSMAN WITHOUT TEETH?**STATIC THEORY**

- The complaint procedure against the Prime Minister is not transparent, adding to concerns about accountability at the highest level.
- Heavy punishment prescribed for false complaints is meant to deter frivolous filings, but can simultaneously discourage genuine whistleblowers from coming forward.

MEMORY HOOK

NO suo-motu, NO anonymity, 7-YEAR limit - the Lokpal's three missing teeth.

MUST-KNOW FACTS

1. The Lokpal cannot act on its own motion; it requires a complaint.
2. Anonymous complaints are not permitted.
3. A 7-year limitation period applies to complaints.

UPSC TRAPS

WRONG: The Lokpal can launch investigations suo motu, like some ombudsman models elsewhere.

CORRECT: It cannot; it can act only on a complaint filed in the prescribed form.

MAINS ANGLE

Propose reforms to protect genuine whistleblowers while deterring frivolous complaints against public functionaries.

STUDY LINK

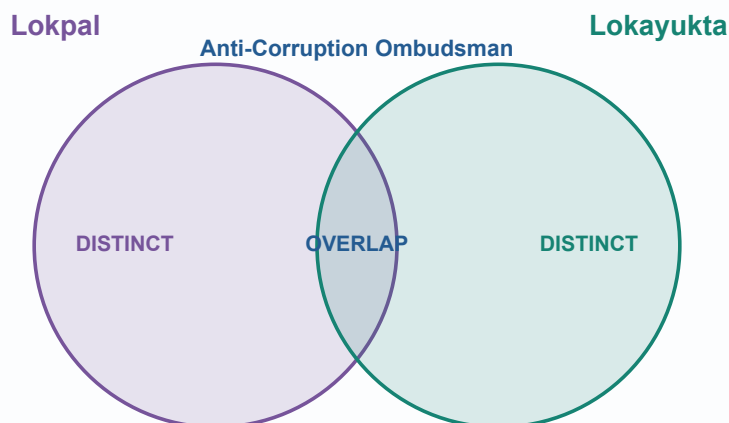
Polity -> Whistleblower Protection -> Whistle Blowers Protection Act, 2014

HIGH**8. Lokayuktas: State-Level Design and Non-Uniformity**

GS-II Polity -
Cooperative
Federalism

NEWS TRIGGER

Wide variation in how different states have designed their Lokayuktas illustrates how the 2013 Act left institutional detail to state legislatures.

LOKPAL (CENTRE) VS LOKAYUKTA (STATES)**Lokpal**

- Uniform central statute
- Fixed composition: Chairperson plus max 8 members

Anti-Corruption Ombudsman

- Investigates public servants for corruption
- Statutory (not constitutional) institution
- Traces to the First ARC's two-tier recommendation

Lokayukta

- Design left to state legislatures
- Appointment panel, composition, jurisdiction and tenure vary by state

Unlike the Lokpal's single central design, Lokayuktas differ from state to state because the 2013 Act mandated their establishment but left the details to state law.

KEY DATA

Aspect	Lokpal (Centre)	Lokayukta (States)
Governing law	Lokpal and Lokayuktas Act, 2013	Individual state Lokayukta laws
First instituted	2013 (Act); operational later	Maharashtra, 1971 (first state)
Design uniformity	Single uniform structure	Varies across states

STATIC THEORY

- The 2013 Act required every state to establish a Lokayukta by state law within a specified period, but did not prescribe a uniform composition, appointment panel or tenure.
- This design choice respects state legislative competence over their own administrative machinery, producing a genuinely federal but non-uniform anti-corruption architecture.

MEMORY HOOK

Lokpal is ONE central design; Lokayukta is AS MANY designs as there are states.

MUST-KNOW FACTS

1. Maharashtra was the first state to establish an operational Lokayukta, in 1971.
2. The 2013 Act mandated states to establish Lokayuktas by state law, without fixing a uniform design.
3. Appointment panels, composition, jurisdiction and tenure of Lokayuktas vary across states.

UPSC TRAPS

WRONG: Every Lokayukta follows the same appointment panel and a uniform tenure/age rule.

CORRECT: State statutes differ; there is no single uniform Lokayukta design.

MAINS ANGLE

Co-operatives are State subjects but need national vision -- apply the same federal-design logic to evaluate why Lokayuktas were deliberately left non-uniform.

STUDY LINK

Polity -> Cooperative Federalism -> state-specific institutional design

HIGH

9. Recent Developments and the 2025 Jurisdiction Question

GS-II Polity -
Judicial
Accountability

NEWS TRIGGER

A Supreme Court stay on a January 2025 Lokpal order asserting jurisdiction over a High Court judge has reopened the long-settled question of whether the higher judiciary falls within the Lokpal's ambit.

INTRO & ORIGIN**TIMELINE**

- 2019** — Justice Pinaki Chandra Ghose becomes the first Lokpal Chairperson.
- 10 Mar 2024** — Justice A.M. Khanwilkar assumes office as Lokpal Chairperson.
- 27 Jan 2025** — Lokpal passes an order asserting jurisdiction over a High Court judge.
- 20 Feb 2025** — Supreme Court stays the Lokpal's 27 January 2025 order.

THE JURISDICTION QUESTION REMAINS OPEN**1. Judiciary kept outside**

The First ARC and the 2013 Act intended to keep the judiciary outside the Lokpal's purview.

**2. Lokpal order, January 2025**

The Lokpal asserts jurisdiction over a sitting High Court judge.

**3. Supreme Court stay, February 2025**

The Court stays the order; the question remains unresolved, not settled law.

STATIC THEORY

- The Supreme Court's February 2025 stay is an interim measure, not a final ruling; it neither confirms nor forecloses the Lokpal's jurisdiction over High Court judges.
- Any answer suggesting the matter is fully resolved -- in either direction -- currently overstates the settled legal position.

MEMORY HOOK

STAYED is not SETTLED - the High-Court-judge jurisdiction question is still open.

MUST-KNOW FACTS

1. Justice A.M. Khanwilkar has been the Lokpal Chairperson since 10 March 2024.
2. Justice Pinaki Chandra Ghose was the first Lokpal Chairperson, from 2019.
3. The Supreme Court stayed the Lokpal's 27 January 2025 order on 20 February 2025.

UPSC TRAPS

WRONG: The 2025 Supreme Court stay has permanently settled that judges are outside Lokpal jurisdiction.

CORRECT: The stay is interim; the jurisdiction question remains unresolved.

MAINS ANGLE

Can the Lokpal investigate the higher judiciary? Discuss in light of the 2025 Supreme Court stay and the historical exclusion of the judiciary recommended by the First ARC.

STUDY LINK

Polity -> Judicial Accountability -> Judges (Inquiry) Act and in-house mechanisms

HIGH**10. Institutional Overlap and Mains Framework**

GS-II Polity -
Institutional
Coordination

NEWS TRIGGER

The coexistence of the Lokpal, CVC, CBI and ED as separate anti-corruption bodies raises a recurring question of institutional overlap and coordination.

STATIC THEORY

- A complete Mains answer on the Lokpal should move through five steps: define its statutory status, explain composition and selection, state jurisdiction and powers, identify structural drawbacks, and place it within the wider anti-corruption institutional landscape.
- The Lokayukta's federal, non-uniform design should be cited to show awareness of Centre-State variation within the same overall anti-corruption scheme.

MEMORY HOOK

One exam theme, four institutions: Lokpal, CVC, CBI, ED - a fragmented anti-corruption architecture.

MUST-KNOW FACTS

1. The Lokpal is a statutory body created by the 2013 Act, distinct from the CVC and CBI.
2. It exercises superintendence over the CBI only for cases referred to it.
3. Its principal structural weaknesses are the absence of suo-motu power, no anonymous complaints, and a 7-year limitation period.

UPSC TRAPS

WRONG: The Lokpal replaces the CVC and CBI in anti-corruption work.

CORRECT: It coexists with them, exercising specific referral-based powers such as superintendence over the CBI.

HOW THE LOKPAL CONNECTS TO OTHER ANTI-CORRUPTION BODIES

Institution	Connection to Lokpal	Why It Matters
Central Vigilance Commission	Advises on corruption in central government departments; distinct statutory basis from the Lokpal	Risk of overlapping mandates without a clear division of labour
CBI	Investigates cases referred by the Lokpal, which exercises superintendence over such referrals	Raises questions on the CBI's operational independence under two supervising authorities
Enforcement Directorate	Conducts parallel financial-crime investigation under the Prevention of Money Laundering Act	Coordination challenge among multiple anti-corruption agencies

MAINS ANGLE

An Ombudsman without teeth -- evaluate the structural weaknesses of the Lokpal, and the multiplicity of anti-corruption institutions (Lokpal, CVC, CBI, ED) and the need for their coordination.

STUDY LINK

Polity -> Anti-Corruption Architecture -> integrated CVC-CBI-ED-Lokpal revision